



Tennessee Teacher Code of Ethics

49-5-1001. Short title.

This part shall be known and may be cited as the "Teacher Code of Ethics."

History

Acts 2010, ch. 916, § 1.

49-5-1002. Legislative findings.

The general assembly finds and declares that:

- (1) An educator, believing in the worth and dignity of each human being, recognizes the supreme importance of the pursuit of truth, devotion to excellence, and the nurture of democratic principles. Essential to these goals is the protection of freedom to learn and to teach and the guarantee of equal educational opportunity for all. An educator accepts the responsibility to adhere to the highest ethical standards; and
- (2) An educator recognizes the magnitude of the responsibility inherent in the teaching process. The desire for the respect and confidence of one's colleagues, of students, of parents and of the members of the community provides the incentive to attain and maintain the highest possible degree of ethical conduct.

History

Acts 2010, ch. 916, § 1.

49-5-1003. Educator's obligations to students.

- (a) An educator shall strive to help each student realize the student's potential as a worthy and effective member of society. An educator therefore works to stimulate the spirit of inquiry, the acquisition of knowledge and understanding, and the thoughtful formulation of worthy goals.
- (b) In fulfillment of this obligation to the student, an educator shall:
 - (1) Abide by all applicable federal and state laws;
 - (2) Not unreasonably restrain the student from independent action in the pursuit of learning;
 - (3) Provide the student with professional education services in a nondiscriminatory manner and in consonance with accepted best practices known to the educator;
 - (4) Respect the constitutional rights of the student;
 - (5) Not unreasonably deny the student access to varying points of view;
 - (6) Not deliberately suppress or distort subject matter relevant to the student's progress;
 - (7) Make reasonable effort to protect the student from conditions harmful to learning or to health and safety;
 - (8) Make reasonable effort to protect the emotional well-being of the student;
 - (9) Not intentionally expose the student to embarrassment or disparagement;
 - (10) Not on any basis, unfairly:
 - (A) Exclude the student from participation in any program;
 - (B) Deny benefits to the student; or
 - (C) Grant any advantage to the student;
 - (11) Not use the educator's professional relationship with the student for private advantage;

- (12) Not disclose information about the student obtained in the course of the educator's professional service, unless disclosure of the information is permitted, serves a compelling professional purpose, or is required by law;
- (13) Not knowingly make false or malicious statements about students or colleagues;
- (14) Ensure interactions with the student take place in transparent and appropriate settings;
- (15) Not engage in any sexually related behavior with the student, whether verbal, written, physical, or electronic, with or without the student's consent. Sexually related behavior includes, but is not limited to, behaviors such as making sexual jokes or sexual remarks; engaging in sexual kidding, sexual teasing, or sexual innuendo; pressuring the student for dates or sexual favors; engaging in inappropriate physical touching, groping, or grabbing; kissing; rape; threatening physical harm; and committing sexual assault;
- (16) Not furnish alcohol or illegal or unauthorized drugs to the student;
- (17) Strive to prevent the use of alcohol or illegal or unauthorized drugs by the student when the student is under the educator's supervision on school or LEA premises, during school activities, or in any private setting;
- (18) Refrain from the use of alcohol while on school or LEA premises or during a school activity at which students are present; and
- (19) Maintain a professional approach with the student at all times.

History

Acts 2010, ch. 916, § 1; 2018, ch. 937, § 1.

49-5-1004. Educator's obligations to the education profession.

- (a) The education profession is vested by the public with a trust and responsibility requiring the highest ideals of professional service. In the belief that the quality of the services of the education profession directly influences the nation and its citizens, the educator shall exert every effort to raise professional standards, to promote a climate that encourages the exercise of professional judgment, to achieve conditions which attract persons worthy of the trust to careers in education, and to assist in preventing the practice of the profession by unqualified persons.
- (b) In fulfillment of this obligation to the profession, an educator shall not:
 - (1) Deliberately make a false statement or fail to disclose a material fact related to competency and qualifications in an application for a professional position;
 - (2) Misrepresent the educator's professional qualifications;
 - (3) Assist entry into the profession of a person known to be unqualified in respect to character, education, or other relevant attribute;
 - (4) Knowingly make a false statement concerning the qualifications of a candidate for a professional position;
 - (5) Assist a noneducator in the unauthorized practice of teaching;
 - (6) Disclose information about colleagues obtained in the course of professional service unless the disclosure serves a compelling professional purpose or is required by law;
 - (7) Knowingly make false or malicious statements about a colleague;
 - (8) Accept any gratuity, gift, or favor that might impair or appear to influence professional decisions or actions; and
 - (9) Use illegal or unauthorized drugs.
- (c) In fulfillment of this obligation to the profession, educators shall:
 - (1) Administer state-mandated assessments fairly and ethically; and
 - (2) Conduct themselves in a manner that preserves the dignity and integrity of the education profession.

History

Acts 2010, ch. 916, § 1; 2018, ch. 937, §§ 2, 3.

49-5-1005. Public access to teacher code of ethics.

The state board of education shall post the teacher code of ethics on its web site.

History

Acts 2011, ch. 214, § 1.

49-5-1006. Report of breach of teacher code of ethics -- Failure to report.

(a) An educator who has personal knowledge of a breach by another educator of the teacher code of ethics prescribed in §§ 49-5-1003 and 49-5-1004 shall report the breach to the educator's immediate supervisor, director of schools, or local board of education within thirty (30) days of discovering the breach.

(b) Failure to report a breach of the teacher code of ethics, or to file a report of any criminal activity or other misconduct that is required by federal or state law, is a breach of the teacher code of ethics.

History

Acts 2018, ch. 937, § 4.

49-5-1007. Professional development training concerning teacher code of ethics.

LEAs must conduct annual professional development training concerning the teacher code of ethics and its requirements. The professional development training shall address what constitutes unethical conduct.

History

Acts 2018, ch. 937, § 5.